

HOUSE No. 5008

The Commonwealth of Massachusetts

INITIATIVE PETITION OF ADAM GOMEZ AND OTHERS.

OFFICE OF THE SECRETARY.

BOSTON, January 7, 2026.

Timothy Carroll
Clerk of the House of Representatives
State House
Boston, Massachusetts 02133

Sir: — I herewith transmit to you, in accordance with the requirements of Article XLVIII of the Amendments to the Constitution “An Initiative Petition to Protect Tenants by Limiting Rent Increases,” signed by ten qualified voters and filed with this department on or before December 3, 2025, together with additional signatures of qualified voters in the number of 88,132, being a sufficient number to comply with the provisions of said Article.

Sincerely,

WILLIAM FRANCIS GALVIN
Secretary of the Commonwealth.

AN INITIATIVE PETITION.

Pursuant to Article XLVIII of the Amendments to the Constitution of the Commonwealth, as amended, the undersigned qualified voters of the Commonwealth, ten in number at least, hereby petition for the enactment into law of the following measure:

HOUSE No. 5008

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect tenants by limiting rent increases.

Be it enacted by the People, and by their authority, as follows:

1 The General Laws are hereby amended by striking out chapter 40P and inserting in place
2 thereof the following chapter:-

3 CHAPTER 40P. LIMITING RENT INCREASES

4 Section 1. Purpose.

5 The purpose of this act is to provide housing stability for tenants, landlords, and communities
6 across the commonwealth, and curb displacement as a result of the housing shortage and
7 affordability crisis in Massachusetts.

8 Section 2. Definitions.

9 For the purposes of this chapter: —

10 “Covered Dwelling Units” shall mean all dwelling units leased for residential, but not
11 commercial, use, except:

(a) Dwelling units in owner-occupied buildings with four or fewer units.

(b) Dwelling units whose rents are subject to regulation by a public authority; provided, however, that occupancy by a tenant with a mobile housing voucher does not constitute being regulated by a public authority.

(c) Dwelling units that are rented primarily to transient guests for a period of less than 14 consecutive days.

(d) Dwelling units in facilities operated solely for educational, religious, or non-profit purposes.

(e) Dwelling units for which the first residential certificate of occupancy is less than 10 years old, for a period of 10 years from the date at which such certificate of occupancy was issued.

Section 3. Rent increase limits.

This chapter shall establish a limit on any annual rent increase for a covered dwelling unit in the commonwealth, which shall not exceed the annual increase in Consumer Price Index or 5%, whichever is lower, in any 12-month period. This limit shall apply whether or not there is a change in-tenancy during the relevant 12-month period.

For purposes of this chapter, the rent amount in place on January 31, 2026, shall serve as the base rent upon which any annual rent increase shall be applied. If a covered dwelling unit is vacant on the date of adoption, the last rent amount charged shall serve as the base rent. If there was no previous rent amount, or if no rent has been charged for at least the previous five years, for a covered dwelling unit the rent amount the owner first charges following the date of adoption shall serve as the base rent.

Where dwelling units are exempt, a notice of exemption must be provided with the lease for all tenancies. If there is no written lease for such dwelling units, the tenants-at-will must be provided with a written notice of exemption prior to the acceptance of the initial rent payment.

Section 4. Penalties.

Any violation of this chapter shall be deemed an unfair and deceptive act under chapter 93A of the General Laws. Any person claiming a violation of this chapter may pursue remedies under section 9 of chapter 93A. The attorney general is hereby authorized to bring an action under section 4 of chapter 93A to enforce this provision and to obtain restitution, civil penalties, injunctive relief, and any other relief awarded pursuant to said chapter 93A.

Section 5. Interpretation of This Chapter,

Nothing in this section shall be construed to interfere with any existing rights or protections afforded to tenants under current state or federal law.

FIRST TEN SIGNERS

<u>NAME</u>	<u>RESIDENCE</u>	<u>CITY OR TOWN</u>
Adam Gomez	447 Riverside Road	Springfield
Patricia D. Jehlen	67 Dane Street	Somerville
Samantha Victoria Montaño	77 Boylston Street	Boston
Nicole McClain	99 Eutaw Avenue	Lynn
Rose K. Webster- Smith	87 Leatherleaf Drive	Springfield
Willie M. Hurd	60 Edson Street	Boston
Kathleen Talbot	87 Highland Avenue	Westfield
Etel Haxhijaj	4 Englewood Avenue	Worcester
Annie Gordon	50 Fairlawn Avenue, #D11	Boston
Julia Mejia	48 Capen Street	Boston

CERTIFICATE OF THE ATTORNEY GENERAL.

September 3, 2025.

Honorable William Francis Galvin
Secretary of the Commonwealth
One Ashburton Place, Room 1705
Boston, Massachusetts 02108

Re: Initiative Petition No. 25-21: An Initiative Petition to Protect Tenants
by Limiting Rent Increases

Dear Secretary Galvin:

In accordance with the provisions of Article 48 of the Amendments to the Massachusetts Constitution, I have reviewed the above-referenced initiative petition, which was submitted to me on or before the first Wednesday of August of this year.

I hereby certify that this measure is in proper form for submission to the people; that the measure is not, either affirmatively or negatively, substantially the same as any measure which has been qualified for submission or submitted to the people at either of the two preceding biennial state elections; and that it contains only subjects that are related or are mutually dependent and which are not excluded from the initiative process pursuant to Article 48, the Initiative, Part 2, Section 2.

In accordance with Article 48, I enclose a fair, concise summary of the measure.

Sincerely,

ANDREA JOY CAMPBELL,
Attorney General.

SUMMARY OF 25-21

This proposed law would limit the annual rent increase for residential units in Massachusetts to the annual increase in the Consumer Price Index for a 12-month period, or 5%, whichever is lower. The law would not apply to units in owner-occupied buildings with four or fewer units; units that are subject to regulation by a public authority; units rented to transient guests for periods of less than 14 days; units operated for educational, religious, or non-profit purposes; and units that received their residential certificate of occupancy within the last 10 years. The rent in place for a unit as of January 31, 2026, would serve as the base rent for the annual rent increase limit. A violation of this law would be a violation of the state consumer protection law.